
COASTAL AND MARINE RESOURCE MANAGEMENT LAWS: THE KEY TO SAFEGUARDING GUIMARAS' BODIES OF WATER

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Guimaras is an island province, formerly known as '*Himal-us*', that is best known for its sweetest mangoes, pristine beaches, and crystal-clear waters¹ which is famous for both local and foreign tourists. It lies southeast of Panay Island and northwest of Negros Island. Five (5) municipalities composed the province, namely: Buenavista, Jordan, Nueva Valencia, San Lorenzo, and Sibunag.

Beach resorts can be found along the coastline of the Five Municipalities, including a few island resorts. As Guimaras Province's tourism capital, with its enormous tourism potential, Nueva Valencia ports the largest number of beach resorts. Diving sites are identified in several spots throughout the coastal areas, which are noted for their richness, abundance, and diversity in marine resources.² Because of its wide range of seawater, locals venture for fishing as their primary employment and usually seafood is the main source of food.

Guimaras has one protected area under the National Integrated Protected Areas System (NIPAS) category, which is known as the Taklong Island National Marine Reserve located in the municipality of Nueva Valencia. Meanwhile, there are eleven (11) locally declared marine protected areas (MPAs) established within the five municipalities.³ The breathtaking view of the coasts and the marine areas captures the heart of every people that visit it. It is the duty of every person, may it be a local resident or a guest in the vicinity to protect, conserve, and preserve it for the betterment of our biodiversity.

To a greater degree of safeguarding the coasts and marine resources, here are some of the national and local laws to which the province of Guimaras conform.

1987 Philippine Constitution

The Constitution provides for the fundamental framework to which all laws of the land must abide. It is clearly mandated under Article II Section 16 that the State shall protect and advance the right of the people to a balanced and healthful ecology in accordance with the rhythm and harmony of nature.⁴ "The environment occupies

¹ Guimaras: Guimaras Past and Present from (Province of Guimaras, n.d.), <https://guimaras.gov.ph/featured-articles/>

² *Id.*

³ *Id.*

⁴ CONST. (1987), art. II, §16 (Phil.).

pride of place in the fundamental law of the land; we, the people, must defend it and ensure that it is truly honored” " as the Philippine Daily Inquirer quoted.⁵

In the landmark case of *Oposa v. Factoran*, the Court defines the phrase “in accord with the rhyme and rhythm of nature” (of Section 16) as the “judicious disposition, utilization, management, renewal and conservation of the country’s forests, minerals, land, waters, fisheries, wildlife, offshore areas, and other natural resources to the end that their exploitation, development, and utilization be equitably accessible to the present as well as future generations.”⁶

Also, Article XII Section 2 provides that the State shall protect the nation's marine wealth in its archipelagic waters, territorial sea, and exclusive economic zone, and reserve its use and enjoyment exclusively to Filipino citizens.⁷

These Constitutional provisions made it clear that it is the duty and responsibility of the State to create laws that will protect and sustain the Philippine environment and its natural resources.

National Laws

Coastal and marine resource management in the Philippines is primarily based on a number of national laws, including the Philippine Environmental Code (P.D. No. 1151 and 1152), the Fisheries Decree of 1975 (P.D. No. 704), the Local Government Code of the Philippines (R.A. No. 7160), the National Integrated Protected Areas System (NIPAS) Act of 1991 (R.A. No. 7586), the Philippine Fisheries Code of 1998 (R.A. No. 8550), the Extended Producer Responsibility Act of 2022 (R.A. No. 11898), and the Philippine Clean Water Act of 2004 (R.A. No. 9275).

The Fisheries Decree of 1975⁸ revised and unified all laws and decrees about fishing and fisheries to foster and expedite integrated development of the fishing sector and to maintain the nation's fisheries resources at their most productive state through appropriate preservation and safeguarding. It was able to support and boost exports.

⁵ PH Laws Ensure Protection of Ecosystem (Inquirer, 2018), <https://opinion.inquirer.net/110981/ph-laws-ensure-protection-ecosystem>

⁶ *Oposa v. Factoran*, G.R. No. 101083, (July 30, 1993) (Phil.), <https://elibrary.judiciary.gov.ph/assets/pdf/philrep/2006/G.R.%20NO.%20158290.pdf>

⁷ CONST. (1987), art. XII, § 2 (Phil.).

⁸ Fisheries Decree of 1975, P.D. No. 704 (Phil.).

A comprehensive law was enacted in 1977 entitled “Philippine Environmental Code” to protect and preserve the environment of the Philippines.⁹ One of its aims is to improve the quality of Philippine water resources through the classification of Philippine waters, establishment of water quality standards, protection and improvement of the quality of the Philippine water resources, and responsibilities for surveillance and mitigation of pollution incidents.

The Philippines enacted a significant piece of national legislation known as the Local Government Code (R.A. No. 7160). This law went into force in January 1, 1992 marked the start of a new chapter in municipal development and citizen empowerment, opening the door for achieving community self-sufficiency and local autonomy.¹⁰ The Code's adoption caused a systemic power shift that prioritized coastal cities and municipal governments for managing resources sustainably and efficiently providing guidelines for environmental maintenance.

In 1992, the NIPAS Law made it the responsibility of the Department of Environment and Natural Resources to safeguard and sustainably manage natural habitats, like marine ecosystems, in protected areas across the Philippines. This led to the creation of both extensive and smaller marine protected areas. Management efforts focused on strengthening institutions and involving local communities. If a protected area falls within municipal waters, the local government is represented on the Protected Area Management Board.¹¹

The Philippine Fisheries Code of 1998 was anchored from the Constitutional Provision of the right of every Filipino citizen to access the fishery and aquatic resources. When it comes to environmental aspects, its main purpose is to ensure the rational and sustainable development, management, and conservation of the fishery and aquatic resources in Philippine waters including the Exclusive Economic Zone (EEZ) and the adjacent high seas, consistent with the primordial objective of maintaining a sound ecological balance, protecting and enhancing the quality of the environment.¹²

Under the Extended Producer Responsibility Act of 2022, Chapter III-A Article 1 (4). clean-up of waste leaked to coastal areas, was highlighted in adopting a systematic comprehensive, and ecological solid waste management program.

Lastly, the Philippine Clean Water Act of 2004 is a comprehensive law that applies to water quality management in all water bodies: fresh, brackish, and marine waters.¹³ It provides strategies and regulations on how to protect and conserve the

⁹ Philippine Environmental Code, P.D. 1152 (Phil.).

¹⁰ Local Government Code, Rep. Act No. 7160 (Phil.).

¹¹ Expanded National Integrated Protected Areas System Act of 2018, Rep. Act. No. 11038 (Phil.).

¹² Fisheries Code of 1998, Rep. Act No. 8550 (Phil.).

¹³ Philippine Clean Water Act of 2004, Rep. Act. No. 9275 (Phil.).

country's water resources. The main goal of this law is to ensure that every Filipino has access to clean and safe water while also safeguarding the environment, particularly the aquatic resources.

Local Ordinances

The province and municipalities of Guimaras have enacted several ordinances for environmental resources protection, conservation, and management, such as Provincial Ordinance No. 2, 2005 for the Guimaras Environment Code, and other sectoral ordinances covering fishery, extraction of natural resources, the establishment of protected areas, pollution, and solid waste management, the effectiveness of such legislations is difficult to discern.

The enforcement of these laws, including the commitment of concerned authorities in implementing them, needs to be considered and strengthened as highlighted in the State of the Coasts of Guimaras Province.¹⁴

Guimaras Coastal Strategy

The province of Guimaras adopted Integrated Coastal Management with the assistance of the Partnerships in Environmental Management for the Seas of Southeast Asia. It acts as a complement to the existing environmental strategies to bolster the coastal protection that is specifically essential to the province. It was mainly anchored in the international convention and agreements ratified by the Philippines, national legislation, national and local policies, plans, and programs. Consequently, Resolution No. 160, the "Resolution Adopting the Guimaras Coastal Strategy 2020 of this Province"¹⁵ was endorsed.

The strategic principles adopted are environment protection, mitigation of environmental risks, climate adaptation, sustainable development, and community involvement to achieve its mission and vision.¹⁶

National government agencies, local government units, non-governmental organizations, civic organizations, media, religious organizations, private sector, industry, academe, communities/households, and the youth are the partners to bring into action the strategic plans which clearly define the respective roles and commitment to the adoption of the coastal management plan.

¹⁴ State of the Coasts of Guimaras Province
https://seaknowledgebank.net/sites/default/files/state-of-the-coasts-of-guimaras_0.pdf

¹⁵ Resolution No. 160, Resolution Adopting the Guimaras Coastal Strategy 2020 of this Province.

¹⁶ Guimaras Coastal Strategy, https://www.pemsea.org/sites/default/files/2023-12/2020_Guimaras_Coastal_Strategy_compressed.pdf

Risks and Challenges

Implementing coastal strategies requires extensive efforts to ensure sustainable development. Some of the possible risks are water pollution, overexploitation of natural resources, climate change, solid wastes, economic constraints, and community involvement.

Notably, in terms of water pollution, people living in coastal areas often use the bodies of water as their garbage dump to dispose of their wastes. Tourism is also a contributing factor, as tourists generate large amounts of plastic waste and their water activities pose significant risks to the coral reefs and marine ecosystems.

There are many cases of illegal fishing that depletes fish stocks and irreparable environmental damage due to the illicit use of commercial fishing methods, large-scale operations that wreak havoc on marine habitats, and the use of destructive techniques.¹⁷

Economic constraints and community involvement are also barriers to achieving these strategies as it requires a hefty amount of finances and the spirit of volunteerism of the barangay members. The struggle to secure funds to facilitate the strategic program is unavoidable because of the high-cost items that are imperative to the establishment of the facilities and for overseeing the developmental changes.

Recommendations

Allocating the budget to finance the enforcement of the strategy is the most primary significant action to be done. Financial capacity is crucial for the protection of coastal and marine resources for the construction of facilities, for acquiring tools and equipment necessary for its development, and to compensate enforcement officers who will be in charge of securing and protecting the areas.

Following immediately after is the information dissemination to coastal barangays to equip them with capacity development, knowledge, and practices to ensure their participation and collaboration in protecting the maritime areas. Monthly community-based programs regarding marine marine-protected area management and other similar maritime protection activities. A weekly clean-up drive is also commendable as it encourages public participation and environmental awareness.

The establishment of an advocacy group will be beneficial because the membership will be likely composed of the youth. In this manner, inhabitants of the

¹⁷ Strengthening Maritime Patrol to Combat Illegal Fishing, <https://www.panaynews.net/strengthening-maritime-patrols-to-combat-illegal-fishing/>

coastal areas will gain insights into how to manage, protect, and preserve their community.

Organization of a group of qualified persons to create a sector that performs oversight duties such as reviewing, monitoring, and ensuring that the policies, plans, programs, and projects implemented are fully functional and effectively operating. On the other hand, the strengthening of maritime patrols to keep an eye on maritime occurrences and combat illegal activities that are detrimental to the water environment.

Lastly, the imposition of a penalty to violators of the law who commit prejudicial activities that result in environmental harm. This will strengthen the implementation of the strategy and the strict compliance of the constituents.

Conclusion

The recent legislation enacted by the Province of Guimaras is known as the “Integrated Coastal Management Ordinance of the Province of Guimaras”, aims to ensure the sustainable development of coastal and marine resources and environment of the province as a basic service to the people who live in the island.¹⁸

The laws and jurisprudence tackled here are indispensable for safeguarding the coastal areas and marine life while combating environmental challenges. Proper management of natural resources is the ultimate determining factor that would increase the survivability and sustainability of our environment. How we can use these supplies has only two results and that is to either contribute to the environmental degradation or prolong its accessibility.

It is really important to be on track with these laws and declarations because these are the key factors essential in utilizing, maintaining, preserving, conserving, and sustaining the coastal and marine resources of Guimaras Province. Furthermore, the island has to strictly enforce its implementing rules and regulations for the law to efficiently and effectively be of purpose because it is the future’s generation who is at stake.

¹⁸ Integrated Coastal Management Ordinance of the Province of Guimaras, Ordinance No. 2018-06 Series of 2018, <https://guimaras.gov.ph/wp-content/uploads/2019/04/Ordinance-2018-06.pdf>

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